

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-16

Samsung Electronics America, Inc.

v.

COSCO Shipping Lines Co. Ltd.

v.

**Samsung Electronics Co., Ltd., Samsung SDS Asia Pacific Pte Ltd., and Samsung
Electronics Logitech Co., Ltd.**

**RESPONDENT’S EMERGENCY MOTION FOR ENLARGEMENT OF TIME TO FILE
RESPONSE TO COMPLAINANT’S MOTION TO COMPEL**

Pursuant to 46 C.F.R. § 502.102, Respondent COSCO Shipping Lines Co., Ltd. (“COSCO”) respectfully moves to enlarge the deadline—from February 18, 2025 to February 27, 2025—for COSCO to respond to the Motion to Compel (Doc. No. 95) of Complainant Samsung Electronics America, Inc. (“SEA”) and an order requiring SEA to respond to the instant Motion on an expedited basis. In support of this requested enlargement of time, COSCO states as follows:

1. On February 9, 2026, COSCO filed a Status Report (Doc. No. 94), explaining the status of ongoing discovery in this matter, including production of documents. Prior to filing that Status Report, COSCO requested that SEA participate in a joint status report, but SEA refused to do so.

2. On February 11, 2026, SEA filed its Motion to Compel. As a result, COSCO's response is currently due February 18, 2026.

3. On February 11, 2026, the Presiding Officer scheduled a hearing on February 13, 2026 to address the schedule in this matter, discovery issues, and pending motions.

4. On February 13, 2026, the Presiding Officer held the scheduled hearing. In connection with the discussion of SEA's Motion to Compel, counsel for COSCO understood the Presiding Officer to request that COSCO submit an affidavit or declaration from a qualified Chinese attorney addressing the issues under Chinese law that affect the production of documents from China. COSCO intends to do so in response to SEA's Motion to Compel.

5. After the February 13 hearing, undersigned counsel for COSCO immediately conferred with their client and sought a declaration from Chinese co-counsel, the Zhong Lun Law Firm, learning that the courts and Zhong Lun offices in China are closed during the Chinese New Year ("Spring Festival") from February 15 to February 23. *See Exhibit A* at ¶¶ 6-8; https://english.www.gov.cn/policies/featured/202511/04/content_WS6909c915c6d00ca5f9a074f7.html. For additional information on the importance of each day of this important holiday, *see also*, <https://www.scmp.com/lifestyle/chinese-culture/article/3343460/lunar-new-year-traditions-and-customs-each-day-holiday-food-haircuts>. As a result, COSCO is unable to obtain a substantive declaration from Chinese co-counsel regarding review of documents and the requirements of related Chinese laws and regulations that are impacting document production COSCO documents exclusively located in China. COSCO has determined that further conferral with Chinese co-counsel and adequate time to prepare a declaration regarding relevant Chinese law impacting document review and productions from China is essential to COSCO's defense

against SEA's Motion to Compel. *See id.* at ¶ 9. As a result, the requested relief is necessary to avoid undue prejudice to COSCO on the merits.

6. The requirements of current Chinese law and related limitations have not been addressed to our knowledge by the FMC. A declaration from a qualified Chinese legal expert is therefore vital to the understanding of those limitations and requirements.

7. Pursuant to 46 C.F.R. § 502.71(a), counsel for COSCO conferred with counsel for SEA in a good faith effort to discuss whether SEA would oppose the relief sought in this motion. On February 14, 2026, counsel for COSCO requested SEA's consent to the relief requested in this motion, but on February 15, 2026, counsel for SEA stated that SEA would not consent.

8. Although COSCO had previously informed SEA with respect to the limitations and hurdles with the production of documents from China, SEA states that it will oppose COSCO's request for additional time to provide a declaration from Chinese counsel in light of the week-long holiday in China.

9. COSCO has not previously sought an enlargement of time to respond to SEA's Motion to Compel.

10. The requested relief is not unique. *See, e.g.,* FMC Docket No. 24-17, *Samsung Electronics America, Inc. v. Orient Overseas Container Line, Ltd. and OOCL (Europe) Ltd.*, Order (January 27, 2026)(Ambrow, J.)(Doc. No. 111)(recognizing 46 C.F.R. § 502.71(d) allows seven days to respond to a non-dispositive motion, but reducing time to respond in light of focused nature of the relief sought).

11. The requested extension will not adversely affect the schedule in this matter. There are no other scheduled deadlines that will be impacted. At the hearing on February 13, the Presiding Officer directed the parties to work together jointly to propose an updated schedule in

this matter and file that schedule by February 18, 2026. The Presiding Officer also directed COSCO to file its own motion to compel, which was previewed during the hearing on February 13, by February 20, 2026. The requested relief in the instant motion would put the briefing of both motions to compel on the same timeline. Although that is not the purpose or reason for this motion, it is an indirect benefit. Dueling motions to compel should be considered by the Presiding Officer at the same time to ensure fairness and advance judicial economy.

12. The requested extension will not unduly prejudice SEA. Part of the relief requested by SEA—seeking an order compelling COSCO to produce documents from Korea—is already moot because COSCO completed its production from Korea on February 11, 2026, as it had previously told SEA that it would. Moreover, COSCO has not refused to produce any documents from China. Indeed, COSCO made a production of documents from China on February 13, 2026, and it expects to make another production of documents from China by February 18, 2026.

13. Based on these facts, there is good cause for an enlargement of time—from February 18 to February 27, 2026—for COSCO to file its response to SEA’s Motion to Compel.

14. Finally, due to the impending current due date for COSCO to file its response to SEA’s Motion to Compel of February 18, 2025, COSCO is filing this motion on an emergency basis, seeking an order shortening Complainant’s time to respond to COSCO’s request for an enlargement and the relief requested from the Presiding Officer before the end of the day on February 18, 2026.

For the foregoing reasons, COSCO respectfully requests an order requiring any response from SEA be filed no later than 5:00pm (Eastern) on February 17, and thereafter an order

granting an extension of the deadline—from February 18 to February 27, 2026—for COSCO to file its response to SEA’s Motion to Compel.

DATED: February 15, 2026

Respectfully submitted,

/s/ Rebecca A. Fenneman

JEFFREY/FENNEMAN LAW + STRATEGY, PLLC

Rebecca A. Fenneman

Eric C. Jeffrey

Kaya C. Massey

Nicholas L. Webb

700 12th Street, NW, Suite 700

Washington, DC 20005

Telephone: 202-904-2301

EJeffrey@JeffreyFenneman.com

RFenneman@JeffreyFenneman.com

Kmassey@JeffreyFenneman.com

NWebb@JeffreyFenneman.com

/s/ Brian J. Whittaker

NIXON PEABODY LLP

Gordon L. Lang

Brian J. Whittaker

Martha A. Medina

799 9th Street, NW, Suite 500

Washington, DC 20001-5327

Telephone: 202-585-8000

GLang@nixonpeabody.com

BWhittaker@nixonpeabody.com

MMedina@nixonpeabody.com

***Attorneys for Respondent
COSCO Shipping Lines Co., Ltd.***

CERTIFICATE OF SERVICE

I certify that on the 15th day of February, 2026, a true and correct copy of the foregoing document, **Respondent's Motion for Enlargement of Time**, was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

ATTORNEYS FOR COMPLAINANT:

HOLLAND & KNIGHT, LLP

Christopher R. Nolan

chris.nolan@hklaw.com

Gerald A. Morrissey, III

gerald.morrissey@hklaw.com

Allison Skopec

Allison.Skopec@hklaw.com

Kristine O. Little

kristine.little@hklaw.com

Matthew DiBlasi

Matthew.DiBlasi@hklaw.com

Marisa Marinelli

Marisa.Marinelli@hklaw.com

**ATTORNEYS FOR THIRD-PARTY RESPONDENTS, Samsung Electronics Co., Ltd.,
Samsung SDS Asia Pacific Pte Ltd., and Samsung Electronics Logitech Co., Ltd.:**

HOHENSTEIN & PARKINSON, LLP

James H. Hohenstein

Jim.hohenstein@hplawnyc.com

Sheryl Parkinson

sheryl.parkinson@hplawnyc.com

/s/ Rebecca Fenneman